

Documented Deception of American Voters: A Record and a Proposal

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Summary. This brief is based on a documented record of **263 cases** (148 from the first Trump term / 2017–January 2021 era; 115 from after the first term and the second term). A case is included only when the claim was later corrected, retracted, settled, shown false by an official finding, or rated False / Mostly False / Pants on Fire by a major fact-check. Full tables and sources: swampforce.com. Full evidence for every case, with links: see Evidence Appendix.

KEY NUMBERS FROM THE RECORD

Who pushed it (exclusive categories)		Most common deception methods	
News outlet / journalist	82	Other	85
Politician / campaign	88	Fabrication / retracted invention	52
Both news and politician named	28	Omission / selective reporting	41
Viral / anonymous social media	25	Contextomy / misquote	28
Other / unclassified	40	Policy-scope inflation	23
Total	263	False photo/video / cheap fakes	12

Viral rows are tagged when no named outlet, journalist, or politician was the primary pusher.

Normalized to the site glossary. Counts use one primary mapped category per case.

Evidence audit: Proven false 186; Rated misleading 77. Proof basis — Official record 78; Outlet's own correction 64; Original transcript/video 27; Fact-check only 94. Correction visibility — Never corrected 170 (fact-checked only 163; no fact-check on file 7); Appended correction 64; Editor's note 8; Settlement/legal retraction 5; On-air 2; Unknown 14.

STRONGEST CASES (HARDEST EVIDENCE)

Limited to Proven false with Official record or Outlet's own correction. Mix of both terms:

- Repeated that a jury found Trump liable for rape (E. Jean Carroll case).** — George Stephanopoulos; ABC News (March 2024 interview) (*Later / second term*). Disproved: ABC settlement. [Primary](#)
- Lawsuit alleged deceptive editing of Harris answers (including on Israel/Trump-related debate framing) that misled viewers about the race ag...** — Paramount (CBS parent); Trump lawsuit over Oct. 2024 60 Minutes Kamala Harris interview ed... (*Later / second term*). Disproved: Paramount settlement. [Primary](#)
- Dossier's core conspiracy claims (e.g., sustained Trump–Russia criminal coordination, Prague meeting, etc.) presented as investigative found...** — BuzzFeed (published full unverified dossier Jan. 10, 2017); extensive cable/network amplif... (*First term*). Disproved: Mueller report; Durham. [Primary](#)
- Absolute framing that there were no serious FBI process failures regarding Trump–Russia investigation.** — Politicians/networks that treated all criticism of Crossfire Hurricane/FISA as baseless “c... (*First term*). Disproved: Durham report. [Primary](#)
- Flynn prepared to testify that candidate Trump directed him to contact Russians during the campaign.** — ABC News, Brian Ross (Dec. 1, 2017 special report) (*First term*). Disproved: ABC correction. [Primary](#)
- Linked Trump ally Anthony Scaramucci to a Russian investment fund in a way CNN later said did not meet standards.** — CNN (online investigative story, June 2017) (*First term*). Disproved: CNN retraction. [Primary](#)
- Footage presented as depicting Turkish military attack on Kurds in Syria amid criticism of Trump's Syria withdrawal.** — ABC News (World News Tonight; GMA, Oct. 2019) (*First term*). Disproved: ABC apology. [Primary](#)
- Early framing that MAGA-hatted Covington students instigated conflict, blocked Nathan Phillips, taunted him, and chanted “Build that wall”.** — The Washington Post, CNN, and other major outlets; viral social amplification (*First term*). Disproved: WaPo editor's note. [Primary](#)
- Trump personally instructed Cohen to lie to Congress about Trump Tower Moscow timing.** — BuzzFeed News (Jan. 2019) (*First term*). Disproved: Mueller office statement. [Primary](#)
- Evidence including cell data placed Michael Cohen near Prague around time of alleged Russia collusion meeting (Steele dossier plot point).** — McClatchy (Dec. 2018 and related Cohen–Prague stories) (*First term*). Disproved: Mueller report. [Primary](#)

WHY CORRECTIONS DON'T FIX IT

Psychology research shows why a buried correction rarely undoes the first blast. The **continued influence effect** means people keep relying on retracted information (Johnson & Seifert, 1994; Lewandowsky et al., 2012). The **illusory truth effect** means repetition makes claims feel true even after a correction (Hasher, Goldstein & Toppino, 1977). False news also spreads faster: an MIT study found false stories were about 70% more likely to be retweeted and reached people roughly six times faster (Vosoughi, Roy & Aral, *Science*, 2018).

NEWSROOM LEAN (VERIFIED SURVEYS)

Indiana University American Journalist survey (2022): about **36%** of U.S. journalists identified as Democrats and **3.4%** as Republicans (~52% independents); Republicans were 7.1% in 2013. Center for Public Integrity (2016): more than **96%** of itemized journalism-sector donations to Clinton or Trump went to Clinton. Harvard Shorenstein Center / Patterson (2017): of clearly toned coverage in Trump's first 100 days, **80%** was negative (~13-to-1 on CNN and NBC).

CURRENT LAW

The First Amendment protects much false speech: *United States v. Alvarez* (2012) struck down the Stolen Valor Act, and the plurality held that falsity alone does not strip speech of protection. A public official must prove "actual malice" (knowing falsity or reckless disregard) to win damages over coverage of official conduct (*New York Times Co. v. Sullivan*, 1964). Narrower tools exist but are limited: the FCC's **news distortion** policy applies only to over-the-air broadcast licensees and needs extrinsic evidence of deliberate falsification; cable and digital outlets are outside it. FEC disclosure can reach paid opposition research—the FEC fined the Clinton campaign and DNC **\$113,000** in 2022 for misreporting Steele-dossier payments as legal expenses. Civil defamation still yields settlements (ABC/Stephanopoulos; Paramount/CBS in this record). Several states already regulate election deepfakes (Texas SB 751 (2019); Minnesota Stat. § 609.771 (2023)).

PROPOSALS FOR CONSIDERATION

Options within existing First Amendment doctrine—not viewpoint censorship. Priority is equal-prominence corrections: buried retractions are never seen.

- **1. Equal-prominence corrections (priority).** A correction must match the original's placement and reach—same air slot or segment; top of the same page, feed, or account online. Continued influence (Johnson & Seifert, 1994) and faster false-news spread (Vosoughi et al., 2018) explain why buried notes fail. Build onto FCC news-distortion for broadcast; extend parallel rules to covered digital publishers without a fairness doctrine for opinion.
- **2. Accuracy standards for press credentials.** Publish viewpoint-neutral standards under which a White House or congressional press credential may be reviewed for a documented pattern of false reporting that was never corrected—applied equally to all outlets, with notice and a chance to respond. Case law already requires process: *Sherrill v. Knight* (D.C. Cir. 1977) held that denial of White House access needs a published standard plus notice, opportunity to rebut, and a written decision; *CNN v. Trump* (D.D.C. 2018) restored Jim Acosta's hard pass by TRO for lack of due process; *Karem v. Trump* (D.C. Cir. 2020) affirmed an injunction against a 30-day suspension for want of fair notice. In *AP v. Budowich* (2025), after the AP did not adopt "Gulf of America," the White House excluded it from the press pool, the Oval Office, Air Force One and other limited-access events; its hard passes were never revoked (*D.D.C. op.*, *ECF 46*). The district court enjoined the exclusion, and the D.C. Circuit (June 2025) partially stayed that injunction (except as to the East Room). As of September 2026 the merits appeal remains pending after November 2025 argument. *Site view*: this list documents why such standards are needed.
- **3. Congress corrects its own record.** Under each house's rulemaking power (Art. I, § 5), when a member's public statement is proven false, the member must formally correct it with the same prominence as the original, and a public registry records who corrected and who refused. This does not alter Speech or Debate immunity for legislative acts (Art. I, § 6).
- **4. Stronger FEC disclosure for opposition research.** Clear labeling when campaign or party funds pay for research seeded to the press.
- **5. AI media transparency + public corrections registry.** Federal labeling for knowingly distributed deceptive synthetic election media (with news/parody carve-outs), plus a searchable nonpartisan registry of material political corrections, retractions, and settlements. Stay inside actual malice: knowing falsity or reckless disregard—not good-faith error.

Site owner's view. Hannah Arendt warned that when people can no longer tell fact from fiction, they lose the capacity to think, judge, and act as citizens (Errera interview, *NYRB* 1978; *Origins of Totalitarianism*, 2nd ed., 1958). Deliberate, large-scale deception of voters betrays informed consent in a self-governing republic. This record is offered as evidence for stronger accountability—not as a substitute for the Constitution.

Full evidence for every case, with links: see **Evidence Appendix** (swampforce-evidence-appendix.pdf).

Full case tables, sources, and methods glossary: <https://swampforce.com>. Figures are computed from project CSVs and regenerate when the record grows. Not legal advice.